

Shaw Towers Realty (Pte) Ltd v Chief Assessor

[2026] SGHC 131, Originating Application No 32 of 2026

General Division of the High Court of the Republic of Singapore

Jurisdiction

Singapore

Area of law

Revenue Law - Property tax, Appeals; Civil Procedure - Appeals

Legal question

Whether a decision by the Valuation Review Board dismissing an application to amend a notice of appeal at the pre-hearing stage is amenable to appeal to the High Court under section 35(1) of the Property Tax Act. More broadly, which categories of decisions made by the VRB may be appealed to the General Division of the High Court.

Key facts

Shaw Towers Realty objected to the Chief Assessor's proposed annual value (AV) of a property in June 2021. The Chief Assessor disallowed the objection in November 2022. The Appellant appealed to the Valuation Review Board in January 2023 with one set of proposed AVs. In May 2024, the Appellant sought to amend its notice of appeal to propose different AVs and introduce the Residual Method of valuation, citing new guidance issued by the Singapore Institute of Surveyors and Valuers in early 2024. The VRB dismissed the amendment application on 19 December 2025, finding it was an afterthought and impermissible. The Appellant then sought an extension of time to appeal the VRB's pre-hearing decision to the High Court on 9 January 2026, which was nearly three years after the original objection.

Holding

The court dismissed the Appellant's application for an extension of time to appeal. The court held that the VRB's Decision dismissing the amendment application was not appealable to the General Division of the High Court under section 35(1) of the Property Tax Act. Section 35(1) permits appeals only against VRB decisions on substantive property tax appeals, namely decisions on appeals against the Chief Assessor's decisions regarding annual values of properties or amendments to the Valuation List, or decisions regarding collection of taxes or appointment of agents. The phrase 'the decision' in section 35(1), read in context of the statute as a whole, refers only to final decisions on these substantive property tax matters, not to interlocutory or pre-hearing procedural decisions. This interpretation is supported by the historical development of the provision since 1963 and the policy purpose of statutory tribunals to adjudicate efficiently on disputes without being dragged into numerous interlocutory appeals. Even if the decision were appealable, the court would have denied the extension of time because the Appellant was substantially out of time, its reasons for delay were inadequate, and the intended appeal was hopeless.

Significance

This decision clarifies the scope of appellate jurisdiction over the Valuation Review Board and establishes important principles regarding the limitation of appeals from statutory tribunals. Property owners seeking to challenge VRB decisions on procedural or interlocutory matters will need to resort to judicial review rather than direct appeal to the High Court. The decision reinforces the policy purpose of tribunals to provide expeditious and efficient dispute resolution without being burdened by multiple interlocutory appeals. It establishes that statutory provisions limiting appeals should be interpreted restrictively and will not be lightly expanded to cover matters beyond their express scope.

Precedent impact

This decision establishes binding precedent in Singapore regarding the interpretation of section 35(1) of the Property Tax Act and the appealable decisions of the Valuation Review Board. It applies principles of statutory interpretation established in *Tan Cheng Bock v Attorney-General* and the rule that jurisdiction must be statutorily conferred. The decision may influence interpretation of appeal provisions in other statutory tribunals where the phrase 'the decision' is used without qualification. The case reinforces that the policy rationale behind establishing tribunals (efficiency, speed, accessibility) is a relevant consideration in determining the scope of appeals from such tribunals.

Full judgment URL

https://www.elitigation.sg/gd/s/2026_SGHC_131